

23STCV00383 23STCV00383

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-04

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Case Number: 23STCV00383 Hearing Date: August 4, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

LYUBA ARAKELYAN,

vs.

CITY OF LOS ANGELES, et al.

Case

No.: 23STCV00383

Hearing Date: August 4, 2026

The Court denies Plaintiff's default
judgment packet.

The Court sets a hearing on an order
to show cause why the complaint should not be dismissed and/or Plaintiff's
counsel sanctioned \$250 for failing to enter default judgment (California Rule

of Court, rule 3.110(h)) on September 30, 2026, at 8:30 AM in Department 729 at Stanley Mosk Courthouse for the following reasons:

1. No

DOE dismissal (DOES 1, 3-100) entered.

2. It

appears that Plaintiff attempted to serve Defendant at one address, while a public records search indicates at least two other addresses (1820 E Garry Ave; 5287 W Sunset Blvd) that were not attempted by the process server. Defendant had also moved to set aside the entry of default, which the previous department handling this case denied without prejudice.

3. The

request for entry of default was not mailed to the defaulted defendant; it was only mailed to the Deputy City Attorney. There is also no evidence that the entry of default was published to ensure proper notification by publication.

4. The

total for the judgment to be entered on the CIV-100 request for Court Judgment is improperly totaled to \$363,049.32 (the correct total is calculated as: $\$7,163.35 + \$350,000.00 + \$7,808.73 = \$364,972.08$). However, the JUD-100 submitted has the correct total proposed judgment value. The JUD-100 and the CIV-100 judgment values must correspond, particularly because the CIV-100 is a mandatory court form.